

TOWN OF NORTH CASTLE
ZONING BOARD OF APPEALS
15 Bedford Road, Armonk, NY 10504
December 7, 2023 7:30 p.m.

ZONING BOARD MEMBERS:

Joseph Monticelli, Chairman
John L. Stipo
Robert Greer
Scott Stopnik
Ray Rodriguez

ALSO PRESENT:

Gerald Reilly, Esq. Town Counsel
Rob Melillo, Building Insp.
Lori J. Zawacki, Secretary

The meeting was called to order at 7:30 p.m. Chairman Monticelli asked for a roll call. All members present, except Scott Stopnik.

Approval of Minutes

John Stipo made a motion to accept the minutes of November 2, 2023, The motion was seconded by Ray Rodriguez.

The Chairman called for the first application and the Public Hearing was open.

REMIX PROPERTIES, LLC, 12 Maple Avenue, Armonk, NY 10504 and known on the Town Tax Assessment Maps as Section 108.01, Block 6, Lot 26 and located in a CB-A2 Zoning District. In order to obtain a site plan approval, the applicant will need the following variance:

Pursuant to Section 355-57 of the Town Code, 48 off-street parking spaces are required where 15 are provided, needing a variance of 33 off-street parking spaces.

The application was represented by Tony Veneziano, Esq., Attorney for the project.

Mr. Veneziano stated we were before this Board on September 7, 2023, and this is the property across from Fortino's in the older house. We would like to rehab the house and put a 3600 sq. ft. restaurant there with 144 seats. It requires a variance of 33 spaces. At the September meeting there were some concerns and opposition and since then we have entered into an agreement with Armonk Square so that has been resolved. We also have an agreement with 20 Maple Avenue for 22 spaces. They have CVS behind them and the whole hamlet with a lot of public parking.

Mr. Veneziano then went through the five factors and felt it was an improvement to the neighborhood and would enhance the neighborhood. It is substantial when you look at it, but with all the parking at 20 Maple and CVS along with public parking it is minimized. It is not self-created and we are under contract to buy it.

Mr. Greer stated he observed around 7 pm when CVS was open and there were 68 spaces available right behind this location. With all the other agreements you have made, I feel there is a ton of parking there.

Mr. Veneziano stated they have an agreement with the American Legion for nine spaces for their employee parking.

Stephan, the owner of the proposed restaurant, stated they have adequate plus parking for patrons and employees. He went over the agreement with the American Legion and their availability.

Mr. Rodriguez went over the parking availability in the immediate area and came up with a total of 56 spaces.

Once again, the calculations to get the number of spaces required was discussed along with the Chef who explained the flow of the patrons. Valet parking would be used on weekends and the occupancy rate was discussed and also the matter that many people when dining and drinking use UBER service.

Mr. Greer also confirmed that there was an agreement with the Armonk Square as they had concerns at our last meeting.

Mr. Stipo asked if they would put their spaces into the parking authority,

The parking authority was discussed by the Board members and Mr. Veneziano.

Mr. Reilly stated the issue is the Planning Board has said you need a certain amount of parking and you agree with that and you presented to this Board that you can get that. There is also stand up patrons at the bar and the distance between the employee parking and the restaurant issues with the Planning Board. The Planning Board sets the limit, and the experts say this is how many they need. They came in with their experts and came up with a figure of 56 spaces. This Board needs to decide if they will get the variance for 33 spaces. We can't tell them to allow other people onto the property. If the Board is considering this matter to be granted, it will have to return to the Planning Board and all the agreements discussed here tonight will be reviewed by the Town Attorney.

Mr. Rodriguez asked how long do these agreements last?

Mr. Veneziano stated the one with 20 Maple is ten years and we are working on the language for past ten years.

Mr. Rodriguez stated it is my understanding that the number of parking spaces is relevant to the number of seats or tables in the restaurant.

Stephan stated it is the seats and square footage that determines the parking requirement.

Chairman Monticelli asked if they will have tandem parking.

Mr. Veneziano stated they will have tandem parking with the valet.

Chairman Monticelli asked if there were any further questions from the Board or from the Public?

There was a person from the public, Stephen Curciocco who stated the Town could use this project as the food and high quality restaurant would be welcome. He stated when going out, UBER is a major method of transportation so no parking would be required for those patrons. Also, many people will carpool which also results in the need for less parking spaces.

There were no more comments or questions from the Board of the Public and the Public Hearing was closed.

Mr. Rodriguez made a motion to grant the variance subject to the approval by the Town Attorney of all the agreements mentioned by the applicant and their attorney and subject to all the determinations by the Planning Board on all the traffic and parking issues.

The motion was 2nd by Bob Greer.

Roll call by the Secretary: John Stipo – Yes, Ray Rodriguez – Yes, Bob Greer – Yes and Joseph Monticelli – Yes. The variance was granted by a unanimous vote of 4-0.

The Chairman called for the next application and the Public Hearing was opened.

DANIEL GROBMAN, 7 Spruce Hill Road, Armonk, NY and known on the Town Tax Assessment Maps as Section 104.01, Block 2, Lot 60 and located in an R1A Zoning District. In order to alterations to an existing storage shed accessory structure, the applicant will need the following variance.

Pursuant to Section 355-21 (g) of the Town Code, the minimum side yard Setback for an accessory structure (shed) is 12.3 feet where 12.5 feet are provided Requiring a variance of .2 feet.

This application was represented by the applicant, Daniel Grobman, and he stated that the shed has been in existence for over thirty years and used as a storage shed. The applicant and his wife moved into the home in 2022 and thought the shed would make a great home office for them.

They went to the RPRC and it was determined the shed was 2 inches closer to the neighbor's property than allowed by Town Code.

Mr. Rodriguez stated this was existing when you purchased the property right?

Mr. Grobman stated yes, it was there since the late 1980s.

Mr. Rodriguez asked if the shed would remain the same size.

Mr. Grobman stated only interior work, the foot print was not to change.

The Chairman asked if there were any more questions from the Board or from the Public.

There were none and the Public Hearing was closed.

Mr. Rodriguez made a motion to grant the variance and it was 2nd by Mr. Greer.

The Chairman called for the next application and the Public Hearing was opened.

SUMMIT CLUB PARTNERS LLC, 570 Bedford Road, Armonk, NY 10504 and known on the Town Tax Assessment Maps as Section 102.02, block 1, Lot 28.2 and located in a GCCFO Zoning District. In order to erect temporary entry signage during construction, the applicant will need the following variances:

1. Pursuant to Section 355-16 C (7) (b) [1] temporary sign requirements of the Town Code the maximum square footage is 6 sq. ft., where 24 sq. ft. are provided requiring a variance of 18 sq. ft.

2. Pursuant to Section 355-16C (7) (b) [1] of the Town Code, the sign shall be located 10 feet from the property line, where 0 feet are provided requiring a variance of 10 feet.

This application was represented by Jeffrey Mendell, partner in the Summit Club LLC.

Mr. Mendell stated that the 2 ft. x 3ft. is just not adequate for this location. He stated he is here by what he considers an improper decision by the Building Department. It is not just residential property, it is a mixed use with commercial component and therefore I think we should be governed by the commercial rules. You will not be able to see a 2ft. x 3ft. while driving down the road. We are building a condominium project with 72 units, and 6 buildings creating a country club community. People driving up and down route 22 are prime candidates, and its important that while we are in the marketing and development phase that people know what is going on there.

Mr. Rodriguez stated we received in the briefing that this is temporary. What is the definition of temporary?

Mr. Mendell stated during construction about 3 or 4 years. It will be in phases.

Mr. Rodriguez stated it mentions it is a metallic sign. How would this impact car headlights on 22 as that area is dark and I live close by.

Mr. Mendell stated the cars are going north – south and the sign s facing east, so no impact on cars. It will also be set back from the road.

Mr. Rodriguez stated, so you believe the larger sign will positively impact the condo sales?

Mr. Mendell stated I hope so.

Mr. Reilly stated I know he has a problem with the Building Inspector's opinion, but in my opinion the Building Inspector was absolutely correct. I don't think anyone has any problem as when they are saying the sign has to be 10 feet back, at 24 sq. ft. they are talking of a residential neighborhood. Like the applicant said, this is a golf course condominium complex so it is not a residential where the sign would be obnoxious. I also spoke to the Town Planner, Adam, and that is his opinion as well. This is a different situation. It's a correct determination by the Building Inspector, it does need this variance for the signage as there is no different signage for a place like Mr. Mendell's. in the Town Code. So it is either he has his tiny little sign or he comes and gets a variance.

Mr. Rodriguez asked if it was classified as commercial would it be different?

Mr. Reilly stated yes, then it would be 6ft x 6 ft.

There was a short discussion between the Board and Mr. Mendell as to whether the residents from a neighborhood across the way could see the sign. It was determined there is a wall as well as landscaping on both sides. It was also determined that it is a mixed use situation so it mitigated the substantiality of the variance and the alternative is that no one will know what is going on there.

There were no more questions from the Board or the Public so the Public Hearing was closed.

Mr. Rodriguez made a motion to grant the variance and it was 2nd by Mr. Greer.

Roll call by the Secretary: Ray Rodriguez, Yes, Bob Greer – Yes, John Stipo – Yes and Joe Monticelli- Yes. The variance was granted by a unanimous vote of 4-0.

The Chairman called for the next application and the Public Hearing was opened.

MARQUIS ASSOCIATES, LLC, 56 LAFAYETTE Avenue, N. White Plains, NY 10603 and known on the Town tax Assessment Maps as Section 122.12, Block 1, Lot 28 and located in an IND-A Zoning District. In order to obtain a site plan approval, the applicant will need the following variance:

Pursuant to Section 3555-57A of the Town Code, the required number of off-street parking spaces required is 91, where 66 are proposed and where an existing variance for 12 spaces was granted on March 5, 2009, requiring a new variance for 25 spaces.

This application was represented by Kory Salomone, Esq., attorney for the applicant. The owner of the property, one of the tenants and Mr. William O'Neill, Architect on the project were also present.

He stated the size of the property, and where it was located as well as the Zoning District and it is a 32,000 sq. ft. building with 28% current vacancy. Julie, the tenant is proposing to convert 4100 sq. ft. of warehouse space to studio space. There is no parking requirement for the studio space we are proposing so it will be classified as an office and we will be using the office parking regulations. With all that is going on there now we need 91 parking spaces, we have 66 and as Lori stated we have a previous variance for 12 spaces and since 25 spaces are required we here tonight seeking 13 spaces.

Mr. Reilly stated there is a 25 space deficiency. A variance is described as what is required and what is proposed. So, the variance request is, and we had an issue Mr. Salamone and I disagree, but Roland Baroni, Esq. and Adam Kaufman, Planning Director both feel the notice is adequate. I do not. However, the variance requested is not for 13 spaces, the variance if you grant it is for 25 spaces. There is a variance for an existing site plan. This will be a separate application, a separate site plan that requires 25 parking spaces. The prior variance that runs with the land will be subsumed into this variance if you grant. It will only come back into play if this goes away and we go back to where we were in 2009. Just so all of you understand it is 25 spots missing.

There was a short discussion between Mr. Reilly and the Board about the way it was noticed and if the substantiality was increased.

Mr. Salamone stated for the record I respect Mr. Reilly but I disagree. A variance goes with the land. Once you have that variance you are considered zoning compliant. You can add it together and that is 25.

There was another short discussion between Mr. Salamone and Mr. Reilly regarding the calculation of how to get to the 25 spaces. It was decided they disagree but both agree the end result will be a variance request for 25 spaces.

Mr. Rodriguez stated there is no addition to the building, it is just because of the re classification which requires the additional spaces.

Mr. Salamone stated that is correct.

Chairman Monticelli stated we have to go with the 25 spaces, it means the same thing.

Mr. Salamone agreed and continued.

Mr. Greer asked what is the studio all about?

Mr. Salamone stated there is a film, tv, studio. With an office you have the same people coming every day, but not with this type of operation. It is certainly unique. People that work in this industry generally don't live in the area, but in the city where the projects are located. I worked in the film industry for ten years and am well aware of how they operate. There will be some people driving, but not like an office, one for one with the cars.

Mr. Greer stated that's why I asked. To me it sounds less people / car intensive than an office.

Mr. Salamone stated there will be shuttle service, public transportation and parking available here and a much smaller stage than bigger places located in the city.

Chairman Monticelli stated he read that parking is for all the tenants. If someone new comes in how will that affect them?

Mr. Salamone stated at its peak with a 94% occupancy there was never an issue with parking with one exception. They had rented to an electrical distributor across the street and their customers would park there. They are no longer tenants and there is no issue with parking at all.

Mr. Reilly inquired about the 28% vacancy and if they do get additional tenants you will need to go back to the Planning Board?

Mr. Salamone stated, if we change the use.

There was a short discussion regarding the parking chart submitted and the breakdown and how it was calculated. It was determined a revisit to the Planning Board would be if a more intensive use for parking was a tenant. If it is a less intensive I can ask for a waiver from the Building Inspector. Mr. Reilly also brought up two issues that were discussed by the Planning Board and then explained the steps the owner would need to take with future tenants. The parking chart was explained in detail by Mr. Salamone. The 28% includes the studio space.

William O'Neill, Architect stated he prepared the parking table and it is assuming full occupancy. It provides the required parking for all the spaces in the building and takes no account of what is occupied at the moment. The 91 spaces is assuming full occupancy. The variance is assuming full occupancy. This is the Code.

Mr. Rodriguez stated you said there would be some large trucks carrying equipment and how would that impact the overall individual parking should you have two or three large trucks at a time.

Julie, the tenant stated they would use the loading dock.

Mr. Rodriguez stated it seems like there is nothing you can do to off- set this, you are not adding or increasing the size in any way.

Mr. Salamone stated that is correct.

Chairman Monticelli asked if there were anymore questions from the Board or from the Public.

There were none.

Mr. Rodriguez made a motion to approve the variance and wanted to add a stipulation.

Mr. Reilly stated you can add a condition subject to the determination on the parking and the traffic by the Planning Board as they have the experts reports that look into it. It is a site plan application.

Mr. Rodriguez made his motion with Mr. Reilly stated condition.

The motion was 2nd by John Stipo.

Roll call by the Secretary : Ray Rodriguez – Yes, Bob Greer – Yes, John Stipo – Yes, and Joe Monticelli – Yes. The variance was granted by a unanimous vote of 4-0.

Motion to close the meeting and 2nd.

Respectfully submitted,

Lori J. Zawacki